that the freedom movement was dominated by distinctly Brahminical principles, and preferred to work with the British administration to protect the interests of the non-Brahmins. This resulted in a cleavage among the press too, with the 'nationalist' newspapers sympathetic to the Congress party, and the 'Anglo-Indian' newspapers sympathetic to the Justice Party.

The Justice Party's early achievement was to secure reservation of seats for non-Brahmins in the provincial legislative council, as part of the Montagu–Chelmsford Reforms of 1919. Thereafter, following an extended round of discussions in 1921, the efforts of the Justice Party yielded an order reserving government jobs for non-Brahmins.[4] This order was called the 'Communal G.O.' It prescribed a ratio by which government jobs would be allotted to non-Brahmins, Brahmins, Muslims, Anglo-Indians and Christians. The Communal G.O. met with immediate protests and resistance, including from sections of the Congress party.[5] It could not be put into effect right away.

In 1927, a revised Communal G.O. was passed and implemented.[6] As the influence of the Justice Party waned and the Congress party gained ascendancy in Madras in the 1930s, the Congress made an about-turn from its earlier position, backed the Communal G.O. and made it 'very much its own policy'.[7] The Communal G.O. continued in force even after Independence, although the ratios of allotment changed over time. It was deployed to allocate positions in both government colleges and government jobs. But within weeks of the Constitution coming into force, an aspiring medical student and an aspiring engineering student filed petitions in the Madras High Court challenging the Communal G.O. on the basis that it violated their fundamental rights.

C.R. Srinivasan, a Brahmin, had applied for admission to the Government Engineering College at Guindy. He had completed an intermediate examination at Madras University, scoring 369 out of 450 marks. Srinivasan apprehended that given the small number of seats available at the government engineering colleges (there were just 395 seats across the four colleges in Madras), the application of the Communal G.O. allocating a specific number of seats for Brahmins would effectively deprive